

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Trevor Hackett	Team: Squad #08	CCRB Case #: 202409497	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 09/21/2024 3:11 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/21/2026	Precinct: 67		
Date/Time CV Reported Mon, 09/23/2024 11:47 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/23/2024 11:47 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Larry Feng	29929	965087	067 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Anthony Warner	08815	957271	067 PCT
2. PO Anthony Porcelli	29986	973677	067 PCT
3. SGT Kyle Sforza	05426	964287	067 PCT
4. PO Andy Yanbai	17132	967729	067 PCT
5. SGT Khalil Elmenyawy	04631	962376	067 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Larry Feng	Abuse: Police Officer Larry Feng entered § 87(2)(b) in Brooklyn.	A . Substantiated
B . PO Larry Feng	Abuse: Police Officer Larry Feng frisked § 87(2)(b)	B . Unable to Determine
C . PO Larry Feng	Abuse: Police Officer Larry Feng searched § 87(2)(b)	C . Unable to Determine

Case Summary

On September 23, 2024, § 87(2)(b) called the CCRB and filed this complaint.

On September 21, 2024, at 3:11 AM, § 87(2)(b) was at her home, located at § 87(2)(b) in Brooklyn. § 87(2)(b) and § 87(2)(b) stood in her front yard when Police Officer Larry Feng of the 67th Precinct Detective Squad, and additional officers from the 67th Precinct, arrived. PO Feng opened § 87(2)(b) front gate and followed § 87(2)(b) into § 87(2)(b) house, where PO Feng allegedly frisked and searched him (**Allegation A: Abuse of Authority, Substantiated; Allegations B and C: Abuse of Authority, Unable to Determine**). § 87(2)(b) was arrested for criminal possession of a weapon. § 87(2)(b) was not summonsed or arrested as a result of the incident.

The CCRB obtained BWC footage from PO Feng and Police Officer Anthony Warner, Police Officer Anthony Porcelli, Sergeant Kyle Sforza, Police Officer Andy Yanbai, and Sergeant Khalil Elmeniawy, all of the 67th Precinct (**BR 01-10**). The footage is located in IAs #29-38 and is summarized in IA #46.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Larry Feng entered § 87(2)(b) in Brooklyn.

Allegation B – Abuse of Authority: Police Officer Larry Feng frisked § 87(2)(b)

Allegation C – Abuse of Authority: Police Officer Larry Feng searched § 87(2)(b)

BWC footage from PO Feng shows, at 00:31, PO Feng exits his police vehicle and approaches § 87(2)(b) front gate at § 87(2)(b) in Brooklyn. At 00:40, PO Feng shines his flashlight at § 87(2)(b) and another unidentified man, who are standing in the front yard. As soon as he does this, § 87(2)(b) turns away and walks through the basement entrance. PO Feng then opens the gate, walks into the front yard, and follows § 87(2)(b) through the basement door into the house. § 87(2)(b) continues walking away from PO Feng, who stops him halfway up the stairwell to the first floor.

At 01:00, PO Feng puts his hands on § 87(2)(b) to stop him on the stairwell. He tells § 87(2)(b) to relax. He does not push, pull, or use any force against § 87(2)(b). § 87(2)(b) tells PO Feng that he is security. PO Feng guides § 87(2)(b) back down the stairwell.

At 01:10, PO Feng states "92, 92." At 01:17, PO Feng tells the other officers that he's "got it." Officers then immediately escort § 87(2)(b) outside to a police vehicle. Prior to § 87(2)(b) walking into the house, the firearm is not visible. There is nothing resembling the shape of a firearm in his right pocket, nor is a red bandana visible at any point in the BWC footage (**BR 01**).

§ 87(2)(b) statement was generally consistent with the BWC footage. On September 21, 2024, at 3:11 AM, § 87(2)(b) stood on the front steps of her home. § 87(2)(b) rented her basement and backyard as an event space. § 87(2)(b) hired security guard, § 87(2)(b) was standing with her in front of the house. Only § 87(2)(b) and § 87(2)(b) were present. § 87(2)(b) was hosting an afterparty and expected people to start arriving soon. PO Feng and additional officers arrived and approached § 87(2)(b) front gate. § 87(2)(b) immediately turned and walked through the basement door, which had been left open for the guests. From outside the gate, PO Feng began shining his flashlight at § 87(2)(b). § 87(2)(b) told him to stop and asked the officers what they were doing there. PO Feng said that they did not need to tell § 87(2)(b) why they were there. PO Feng then opened § 87(2)(b) front gate without her permission and followed § 87(2)(b) into the basement (**BR 11**).

§ 87(2)(b) did not provide a statement as he was uncooperative with the investigation (See IAs for contact attempts).

PO Feng's statement was inconsistent with the BWC footage. PO Feng stated that he and his partners responded to § 87(2)(b) house, which was an "illegal establishment" where she hosted parties. There was an open bar set up inside the house, which was illegal as there was no alcohol permit or liquor license. The officers have previously responded to this location, and there have been several hundred 311 noise complaints made about this location over the past several years. PO Feng had personally responded to this location approximately three times prior to this incident. However, on September 21, 2024, they did not receive any complaints or calls. PO Feng was present at a community board meeting several days earlier in which several complaints were made. As such, officers drove by the location to make sure there was no excessive noise. They did not observe any excessive noise as the party had not started yet. PO Feng did not observe any violations at the point in which officers arrived. PO Feng was unaware of any previous firearms arrests being made at this location. PO Feng did not recall if any supervisors had instructed him to drive by this location.

PO Feng had been unaware of any security guards working at this location and was not familiar with § 87(2)(b). The officers did not have a plan of action when they arrived. PO Feng saw two people in the front yard. It was dark so PO Feng shined his flashlight on them. When he did so, he immediately saw the black handle of a firearm in the right pants pocket of § 87(2)(b). PO Feng estimated he was approximately 10 feet away from § 87(2)(b) when he made this observation. § 87(2)(b) was wearing a black T-shirt and tight black jeans. The firearm was black as well. The barrel of the gun was wrapped in a red bandana, and part of the red bandana was sticking out of his pocket.

When he saw the firearm, he determined § 87(2)(b) was under arrest. He did not suspect him of any other crimes aside from possession of a firearm. § 87(2)(b) immediately entered the house as soon as officers arrived, attempting to evade them. PO Feng did not have any conversation with or recall issuing any commands to § 87(2)(b) before he entered the house. PO Feng followed § 87(2)(b) into the house in a "hot-pursuit" situation. He did not speak with any residents before entering the home. PO Feng entered the home only to retrieve the firearm he observed. PO Feng did not frisk § 87(2)(b) and instead "went in exactly at that spot where [he] saw it" to remove the firearm. When he first saw the firearm, he said "10-92" [indicating that he was under arrest] although PO Feng stated he only made this remark once he was inside the house. When he first approached the house, before entering, he did not recall what if anything he said to the other officers.

The CCRB showed PO Feng his BWC footage in his CCRB interview from 00:28 to 00:43 seconds. PO Feng stated that at 00:40 of the video is when he first saw the firearm. At this point, PO Feng is still outside the gate and § 87(2)(b) was inside the gate near the basement door. PO Feng stated that when he first shined his flashlight on § 87(2)(b) he immediately observed the firearm which was sticking out from the side. PO Feng stated that § 87(2)(b) bladed his body in response, turning to his right side to obstruct the view of the officers by blocking their view of him by showing his left side (**BR 12**).

As per *People v. Doll*, 21 N.Y.3d 665 (2013), officers may only conduct warrantless entries into homes under the following circumstances: 1) there are reasonable grounds to believe an emergency is at hand and an immediate need to protect life, 2) the search must not be primarily motivated by intent to arrest or to seize evidence, and 3) there must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched (**BR 13**).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] prior to entering the home and retrieving the weapon, there was no way for PO Feng to know if § 87(2)(b) [REDACTED] was legally in possession of the firearm. § 87(2)(g) [REDACTED]

It is therefore recommended that **Allegation A** be closed as **Substantiated**.

BWC footage shows that PO Feng ultimately recovered a firearm from § 87(2)(b) body. However, prior to entering the home, the footage does not show anything protruding from § 87(2)(b) right pants pocket as PO Feng claimed. PO Feng reviewed his BWC footage and indicated the exact moment in which he observed the firearm, though it was not visible on the footage. PO Feng stated that once he was inside the house, he did not frisk § 87(2)(b) and instead immediately removed the firearm from the pocket where he observed it. § 87(2)(g)

§ 87(2)(b) BWC footage did not show the firearm or the frisk before PO Feng removed it. § 87(2)(g)

It is therefore recommended that **Allegations B and C** be closed as **Unable to Determine**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- § 87(2)(b)
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
- PO Feng has been a member-of-service for seven years and has been named as a subject in

eight additional CCRB complaints and 16 additional allegations:

- #202002394 involved a substantiated allegation of a discourtesy. The Board recommended Command Discipline A, which the NYPD imposed.
- #202301218 involved substantiated allegations of a stop, a frisk, a search (of a person), improper use of BWC, and a failure to provide an RTKA card. The Board recommended Command Discipline B. The NYPD did not impose any penalties.
- § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of March 14, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**BR 16**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 8

Investigator:	<u>Trevor Hackett</u>	<u>Inv. Trevor Hackett</u>	<u>04/16/2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Lianne May</u>	<u>SI May</u>	<u>04/17/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date